

**IN THE CIRCUIT COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA**

**COLONIAL MANOR MHC
HOLDINGS, LLC,**

Plaintiff,

vs.

CASE NO.: 2021-CA-4553

LORI SKIPPER,

Defendant.

_____ /

PLAINTIFF'S MOTION TO HAVE MATTERS DEEMED ADMITTED

Pursuant to Florida Rule of Civil Procedure 1.370, Plaintiff Colonial Manor MHC Holdings, LLC ("Colonial Manor") moves for an order deeming the matters addressed within its First Requests for Admission admitted for purposes of this action. In support, Colonial Manor states:

BACKGROUND

1. On November 4, 2021, Colonial Manor initiated the instant action by filing a three-count Complaint against Defendant due to Defendant's breach of her Employment Agreement with Colonial Manor.

2. On August 28, 2023, Colonial Manor served its First Requests for Admission on Defendant via email and U.S. Mail. Colonial Manor's First Requests for Admission are attached hereto as **Exhibit A**. Pursuant to Florida Rule of Civil Procedure 1.370, Defendant was required to file and serve a response to Colonial Manor's First Requests for Admission no later than September 27, 2023.

3. As of the date of filing this motion, Colonial Manor has still not received any response to its First Requests for Admission. The response is overdue.

MEMORANDUM OF LAW

Florida Rule of Civil Procedure 1.370 provides:

A party may serve upon any other party a written request for the admission of the truth of any matters within the scope of rule 1.280(b)

. . . .

The matter is admitted unless the party to whom the request is directed serves upon the party requesting the admission a written answer or objection addressed to the matter within 30 days after service of the request

Fla. R. Civ. P. 1.370(a).

Accordingly, the matters included within Colonial Manor's First Requests for Admission are deemed admitted for purposes of this action. *See Fla. Dep't of Fin. Servs. v. Tampa Serv. Co., Inc.*, 884 So. 2d 252, 254 (Fla. 1st DCA 2004) (the "response to the request for admissions was untimely; thus, the matters in the request are properly deemed admitted."); *Perry v. Fairbanks Cap. Corp.*, 888 So. 2d 725, 726 (Fla. 5th DCA 2004) (matters within Requests for Admission were deemed admitted where homeowners failed to respond to Requests served by mortgage company); *Miles v. Robinson*, 803 So. 2d 864, 865 (Fla. 4th DCA 2002) ("A request for admission is deemed admitted unless the party to whom a request is directed serves a written answer or objection."); *Kyle v. McFadden*, 443 So. 2d 497, 499 (Fla. 1st DCA 1984) (holding that matters were properly deemed admitted where failure to respond was not the result of an "inadvertent typographical error or a brief delay in" responding); *Morgan v. Thomson*, 427 So. 2d 1134, 1134 (Fla. 5th DCA 1983) ("Florida Rule of Civil Procedure 1.370 is clear. Unless a timely answer or objection is filed, the requested matter is conclusively admitted and established"); *Stockett v. Beneficial Fin. Co. of S. Miami*, 269 So. 2d 735, 736 (Fla. 3d DCA 1972).

WHEREFORE, Colonial Manor respectfully requests that the Court enter an order deeming that Defendant has admitted each one of Colonial Manor's First Requests for Admission for purposes of this action, and granting such further relief as is just and proper.

Respectfully submitted this 5th day of October, 2023.

/s/ Jordann Wilhelm

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing was filed with the Court through the Florida Courts E-Filing Portal on October 5, 2023, and has been served on Defendant Lori Skipper via email at lorilyn1985@gmail.com and U.S. mail at 900 9th Ave. E., Lot 211, Palmetto, Florida 34221.

/s/ Jordann Wilhelm

JORDANN WILHELM